INBOUND WORKERS TRAVEL AND ACCIDENT INSURANCE

Certificate of Insurance Wording

Registered with Financial Markets Authority as Registered Financial Service Provider Number FSP41761 Member of ANZIFF Australian New Zealand Institute of Insurance and Finance

Coverholder: Insurance Wholesale Limited

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P.O. Box 99 481, Newmarket, Auckland 1149
www.ottainsurance.co.nz

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1. CERTIFICATE OF INSURANCE WORDING

This Certificate of Insurance consists of the proposal (if any) completed and signed by the Certificate of Insurance holder, the Schedule of Insurance, the Certificate of Insurance terms, and and any amendments or endorsements attached.

This Certificate of Insurance will not be valid unless a Schedule of Insurance signed by an Authorised Representative of the Coverholder (Insurance Wholesale Limited) is attached.

Certain words and phrases that appear in bold print have special meanings. Definitions appear in the General Definitions section and in the various Coverage Sections of this Certificate of Insurance. Please read this Certificate of Insurance carefully.

Throughout this Certificate of Insurance, the words "You", and "Your" refer to the Certificate of Insurance holder shown in the Schedule of Insurance. The words "We", "Us" and "Our" refer to the Underwriters providing this insurance.

All cover is subject to You paying or agreeing to pay the premium, and is subject to the terms, **conditions and exclusions of the Certificate of Insurance, including the Schedule of Insurance.**

1.1 Duty of Disclosure

1.1.1 Your Duty of Disclosure

You are required to inform us of any information that would influence the judgment of a prudent insurer when deciding whether to insure you and on what terms. If you fail to do so, or if you provide us with substantially incorrect and material information, we may need to reduce the amount of your claim payment or, in some cases, refuse to pay the entire claim. We might also have to avoid the policy from its beginning.

A statement is considered substantially incorrect if the difference between what is stated and what is actually correct would have been deemed material by a prudent insurer. Similarly, a statement is material if it would have influenced the insurer's judgment in fixing the premium or determining whether to take or continue the risk on the same terms. This duty applies when you apply for insurance or make any alterations to the policy.

1.1.2 Fair Insurance Code

This policy is subject to the provisions of the Insurance Council of New Zealand Fair Insurance Code.

1.1.3 Pre-Existing Medical Conditions

This policy does not extend to cover any pre-existing medical conditions if

- you have been given a terminal prognosis, and/or
- if you are traveling to obtain medical treatment, and/or
- if you are traveling against medical advice.

Additionally, we cannot offer cover for any pre-existing medical conditions if you are receiving or waiting for medical investigation, referral, treatment, and/or results.

If you develop a new medical condition, experience new symptoms, or notice a deterioration in your pre-existing medical condition(s) after purchasing your policy but before departing on your trip, it is essential that you inform us so we can reassess your cover.

Alternatively, you can acquire written confirmation from your medical practitioner certifying that you are fit to travel.

Failure to do so may result in any claim arising from that condition(s) not being covered should you still choose to travel. If a claim arises, you will be asked to provide a copy of the written confirmation from your medical practitioner.

1.2 Operation of Cover

1.2.1 The cover provided by this Certificate of Insurance will only apply during the Period of Insurance stated in the Schedule of Insurance. This may be further limited by the 'Operation of Cover' stated in the Schedule of Insurance.

1.2.2 If no 'Operation of Cover' is stated, then the cover provided by this Certificate of Insurance will apply continuously during the Period of Insurance. There may be some sections of your cover which only operate during or in connection with a Journey. If no Journey is specified in the 'Operation of Cover' (as stated in the Schedule of Insurance), then that section will not provide any cover.

1.3 General Definitions

In this Certificate of Insurance:

Accidental Bodily Injury	means any injury to the body of an Insured Person caused by an Accident which occurs during the Period of Insurance but does not include any condition which is a Sickness or Disease or any degenerative condition..
Accident or Accidental	means a sudden, unforeseen and unexpected event, happening by chance.
Assistance Provider	means Fullerton Health Assistance – Australia or such other organisation as We may designate from time to time.
Civil War	means armed opposition, whether declared or not, between two or more parties belonging to the same country where the opposing parties are of different ethnic, religious or ideological groups, included in the definition is a med rebellion, revolution, sedition, insurrection, coup, the consequences of martial law.
Country of Residence	means the country of which You are a citizen or permanent resident.
Cyber Act	means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System.
Journey	means any journey which commences during the Period of Insurance for the purpose of working in New Zealand and whilst in New Zealand and the transit to New Zealand; begins and ends in the Your Country of Residence; and does not exceed the maximum Journey period as stated in the Schedule of Insurance. A Journey commences at the time You leave Your normal place of residence, and ends at the time You return to Your normal place of residence.
Operation of Cover	means the extent, nature and period of cover stated on the Schedule of Insurance during which the You are covered by the terms and conditions of this Certificate of Insurance. There are some sections of Your cover which only operate during or in connection with a Journey. If no Journey is specified in the 'Operation of Cover' (as stated in the Schedule of Insurance), then that Coverage Section will not provide any cover.
Period of Insurance	subject to the following, means the period stated in the Schedule of Insurance, as limited by the Operation of Cover stated in the Schedule of Insurance..
Physician	means any suitably qualified medical practitioner registered by the General Medical Council in New Zealand (or foreign equivalent); or in respect of dental treatment only, a dental practitioner who is registered with the New Zealand Dental Association (or foreign equivalent) and who is not You or Your Relative.

Pre-existing Medical Condition	means any sickness, dental condition, injury, defect or disease or any other medical condition for which advice, treatment, medication or investigation has been received or prescribed in the 12 months prior to the purchase of this insurance which may or may not be of a recurring or ongoing nature or any complication directly or indirectly attributable to it; and/or - of which You are aware, or the symptoms of which You are aware, or could reasonably be expected to have been aware at the time You took out this insurance.
Professional Sport	means training for, coaching or competing in any sporting event where You are entitled to receive, or are eligible to receive, an appearance fee, wage, salary or prize money in.
Relative	means Your Spouse, parent, parent-in-law, step-parent, child, step-child, grandchild, brother, brother in-law, sister, sister-in-law, daughter-in-law, son-in-law, fiancé(e), half-brother, half-sister, aunt, uncle, niece or nephew, provided such person(s) resides in the Your Country of Residence.
Sickness or Disease	means illness or disease which occurs during the Period of Insurance stated in the Schedule of Insurance, which is the direct and independent cause of loss for which a claim is made under this Certificate of Insurance, and which requires the attendance of a Physician.
Spouse	means Your husband or wife or any partner with whom You have continuously lived with during the three months immediately prior to the commencement date of the Journey.
Underwriters	means Certain Underwriters at Lloyd's of London led by Canopius Managing Agents Ltd, Syndicate 4444.
War	means acts of foreign enemies, armed opposition, invasion (whether war is declared or not), between two countries.
You	means the person stated as the insured person in the schedule of insurance. **Your** and **Yourself** have the same meaning.

1.4 General Exclusions

Applicable to all Coverage Sections

1.4.1 We will not be liable for any claim or loss under this Certificate of Insurance caused by or arising out of:

(a) You travelling in any unlicensed aircraft or flying or engaging in any other aerial activity as part of the aircraft's crew;

(b) Your participation in or training for any professional sport;

(c) Suicide, attempted suicide or any deliberately self-inflicted injury except as provided under section 3.1.1(g);

(d) Radiation or radioactivity from any nuclear fuel or nuclear waste arising from the combustion of nuclear fuel and/or any self-sustaining process for nuclear fission;

(e) Any sexually transmitted disease;

(f) Any criminal act or intentional illegal act committed by You;

(g) The actual or threatened malicious use of pathogenic or poisonous biological or chemical materials;

(h) Deliberate exposure to exceptional danger (except in an attempt to save human life)

(i) Your travel to a country or territory to which the New Zealand Ministry of Foreign Affairs and Trade or equivalent authority in Your Country of Residence advises against all travel. Such reference can be made via https://www.safetravel.govt.nz/travel-advice-levels.

Note that this exclusion does not apply for Your Journey to New Zealand to work in New Zealand and back to Your Country of Residence.

(j) Pre-existing medical conditions You have not received written acceptance from Us. Or any pre-existing condition of any other person that may affect this cover.

(k) Your failure to act in a responsible manner and take all reasonable efforts to:
   i. safeguard your property
   ii. avoid accidental injury
   iii. minimise any claim under this policy, and
   iv. avoid a claim under this policy by heeding a warning communicated by the general mass media about an intended strike, riot or civil commotion.

(l) Motor cycling, if the driver does not hold a current New Zealand motorcycle licence or overseas equivalent (whether or not a license is required in the country where the cycle is ridden).

(m) Sporting activities undertaken professionally.

(n) Diving involving the use of any artificial breathing apparatus, unless you:
   i. hold an open water diving license, or
   ii. are under the direct supervision of a qualified diving instructor.

(o) Mountaineering or rock climbing (but not hiking), or pot holing, which requires the use of climbing equipment, or involves abseiling.

(p) Ocean yachting or blackwater rafting.

(q) Skiing or snowboarding outside designated ski-field areas, or in areas within designated ski fields that are closed because of adverse conditions.

(r) Employment while in New Zealand or overseas which is not the employment of your original application and we have not been advised of the change and accepted the new employment.

(s) Loss of enjoyment, financial loss or any other loss that is not covered specifically in this policy.

(t) Confiscation, detention, or destruction by customs or other authorities.

(u) Any breach or any prohibition or regulation of any government relating to immigration or travel (including failure to obtain a passport or visa).

1.4.2 War or Civil War

a. Our aggregate limit of liability under all sections in respect of all claims or related claims arising out of War or Civil War shall be the amount stated in the Certificate of Insurance Schedule of Insurance.

b. Our liability ceases at the end of the Period of Insurance stated in the Schedule of Insurance, regardless of whether a Journey has been completed or not.

1.4.3 Age Limits

The Certificate of Insurance does not cover You unless You are under sixty (60) years of age at the start of the Period of Insurance. If You turn sixty (60) years of age during the policy period then You will remain covered until renewal.

1.4.4 Epidemic

an actual or likely epidemic or pandemic, or the threat of an epidemic or pandemic. Refer to www.who.int for further information on epidemics and pandemics;

1.4.5 Cyber

We will not pay for any benefits and/or loss, damage, liability, cost, expense caused directly or indirectly by the use of, or inability to use, any application, software or program in connection with any Computer System as a result of a Cyber Act.

1.5 General Conditions

Applicable to all Coverage Sections

1.5.1 Other Insurance

You must inform Us of any other insurance which may also provide cover for You for the circumstances of any claim under this Certificate of Insurance.

To the extent that any loss insured under this Certificate of Insurance is insured under any other insurance, then to the extent to which it is permitted by law, coverage is only provided under this Certificate of Insurance for such loss.

1.5.2 Assignment and Beneficiary Change

No assignment of interest under this Certificate of Insurance is valid except with Our written consent.

No Beneficiary change under this Certificate of Insurance shall bind Us except with Our written consent.

1.5.3 Entire Contract/Alteration

This Certificate of Insurance shall not be modified except by written amendment or endorsement attached hereto.

1.5.4 Applicable Law and Jurisdiction

This Certificate of Insurance shall be governed and construed in accordance with the laws of New Zealand. Any dispute under this Certificate of Insurance shall be resolved in accordance with the laws of New Zealand.

1.5.5 Limits of Liability and Deductions

This Certificate of Insurance is subject to the Limits of Liability and Deductible Amounts stated in the Schedule of Insurance.

1.5.6 Territory

Worldwide. Please see 1.5.11 'Sanction Limitation and Exclusion clause' which provides territorial limitations to the insurance coverage..

1.5.7 Subrogation

If We make any payment under this Certificate of Insurance, then to the extent of that payment, We may exercise any rights of recovery held by You. You must not do anything which reduces any such rights and must provide reasonable assistance to Us in pursuing any such rights.

1.5.8 Cancellation

You can cancel this insurance at any time by writing to Your broker. We can cancel this insurance by giving You thirty (30) days' notice in writing.

If You cancel this insurance within fourteen (14) days then provided You have not made a claim, We will refund in full any premium You have paid.

If this insurance is cancelled after fourteen (14) days then, provided You have not made a claim, You will be entitled to a refund of any premium paid, subject to a deduction for any time for which You have been covered. This will be calculated on a proportional basis subject to a minimum amount of $50.

If We pay any claim, in whole or in part, then no refund of premium will be allowed.

1.5.9 Currency

All amounts shown are in New Zealand dollars. If expenses are incurred in a foreign currency, then the rate of currency exchange used to calculate the amount to be paid will be the rate of exchange published by Westpac New Zealand Limited on the date the expense is incurred or loss is sustained.

1.5.10 Aggregate Limits of Liability

(a) Except as provided in (b) Our total liability for all claims in respect of any one Event, shall not exceed the amount stated in the Schedule of Insurance.

(b) Our total liability for all claims directly arising out of air travel in aircraft whose flights are not conducted in accordance with the fixed schedules to and from fixed terminals over specific routes, shall not exceed the amount stated in the Schedule of Insurance.

1.5.11 Sanctions Suspension Clause

You agree that any cover, the payment of any claim and any benefit provided under your Policy will be suspended, to the extent that providing any cover, the payment of any claim or the provision of any benefit would expose us to any sanction, prohibition or restriction under any:

a. United Nations' resolution(s); or

b. trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America or any trade or economic sanctions, laws or regulations of any other jurisdiction.

The suspension will continue until we are no longer exposed to any sanction, prohibition or restriction.

1.5.12 Excess

If multiple sections of the policy are triggered by one event then a single excess will apply which will be the highest of the applicable excesses.

1.6 Claims Procedures

1.6.1 Notice of Claim

Any occurrence or loss which may give rise to a claim under this Certificate of Insurance should be reported to Us in writing within thirty (30) days after the occurrence or loss

However the Assistance Provider must be informed as soon as reasonably possible of any circumstance likely to give rise to a claim for Medical Emergency Assistance (see Section 3.4) or Political, Natural Disaster Evacuation.

For general claims email: claims@ottainsurance.co.nz or call +64 0508 333 999

For emergency assistance email: assist@fullertonhealthcs.com.au or call +61 2 9299 5390

Our Emergency Assistance Provider is Fullerton Health Assistance – Australia

Fullerton Health Assistance - Australia
Level 10
33 York Street
Sydney NSW 2000
Australia

Failure to furnish notice within the time provided in the Certificate of Insurance shall not invalidate any claim if it can be shown not to have been reasonably possible to furnish such notice and that such notice was furnished as soon as reasonably possible.

When you make a claim, we will acknowledge receipt within 5 business days of receiving your claim, and determine whether or not to accept your claim within 10 business days of the date we have all the information we need to determine your claim. We may not always be able to determine whether or not to accept your claim within 10 business days. You might have a complex claim which takes us longer to evaluate, or we might depend on receiving information from third parties.

1.6.2 Proof of Loss

Written Proof of Loss must be given to Us as soon as possible and, in any event, within thirty (30) days after receipt of Notice of Claim, together with original copies of all relevant documentation.

You shall, at Your expense, provide us with such certificates, information and evidence as We may from time to time require, in a form prescribed by Us.

1.6.3 Physical Examination and Autopsy

Provided that We give reasonable notice, We shall be allowed to have You medically examined or, in the event of Your Accidental death, a post mortem examination carried out at Our expense.

1.6.4 Claim Investigation

In the event of a claim, We may make any investigation We deem necessary, and You shall cooperate fully with such investigation. Failure by You to cooperate with Our investigation may result in denial of the claim or cancellation of the Certificate of Insurance.

1.6.5 Fraudulent Claims

If You shall make any claim knowing the same to be false or fraudulent, as regards to amount or otherwise, this contract shall become void and all claim hereunder shall be forfeited.

1.7 Privacy Statement

Insurance Wholesale Limited is committed to protecting your privacy. Insurance Wholesale Limited collects, uses and retains your personal information in accordance with the principles of current relevant legislation.

nsurance Wholesale Limited collects your personal information (which may include health information) when you are applying for, changing or renewing a Certificate of Insurance with us or when we are processing a claim. We collect the information to assess your application for insurance, to provide you with competitive insurance products and services and administer them and to handle any claim that may be made under a Certificate of Insurance. If you do not provide us with this information, we may not be able to provide you with insurance or to respond to any claim.

Insurance Wholesale Limited may disclose the information we collect to third parties, including contractors and contracted service providers engaged by us to deliver our services or carry out certain business activities on our behalf (such as actuaries, loss adjusters, claims investigators, claims handlers, professional advisers including doctors and other medical service providers, credit reference bureaus and call centres), other companies in the Insurance Wholesale Limited group, insurance and reinsurance intermediaries, other insurers, our reinsurers, and government agencies (where we are required to by law). These third parties may be located outside New Zealand.

You agree to us using and disclosing your personal information as set out above. This consent remains valid unless you alter or revoke it by giving written notice to our Compliance Officer. From time to time, Insurance Wholesale Limited may use your personal information to send you offers or information regarding our products that may be of interest to you. If you do not wish to receive such information, please contact our Privacy Officer using the contact details provided below.

If you would like to access a copy of your personal information, or to correct or update your personal information, please contact our Compliance Officer on +64 21 935 788 or email admin@ottainsurance.co.nz.

If you have a complaint or want more information about how Insurance Wholesale Limited is managing your personal information, please contact the Compliance Officer, Insurance Wholesale Limited, PO Box 99 481 Newmarket, Auckland 1149.

1.8 Complaints

If you have any concerns or wish to make a complaint in relation to this policy, our services or your insurance claim, please let us know and we will attempt to resolve your concerns in accordance with our Internal Dispute Resolution procedure. Please contact Insurance Wholesale Limited in the first instance:

Complaints Officer
Insurance Wholesale Limited
Email: admin@ottainsurance.co.nz

We will acknowledge receipt of your complaint within 5 business days and do our utmost to resolve the complaint to your satisfaction within 10 business days, unless we require further information in which case, we will agree an alternate time frame with you.

If we cannot resolve your complaint to your satisfaction, you can escalate the matter to Lloyd's General Representative in New Zealand:

Lloyd's General Representative in New Zealand
Email: IDRNewZealand@lloyds.com
Telephone: +64 4 472 7582
Post: PO Box 5639 Wellington New Zealand

Following receipt of your complaint, you will be advised whether your dispute will be handled by the Complaints team at Lloyd's Australia or the Lloyd's Complaints team in the UK, or what other avenues are available to you.

A final decision will be provided to you within two months of the date on which you first made the complaint unless certain exceptions apply.

If your complaint is not resolved in a manner satisfactory to you or we do not resolve your complaint within two months of originally receiving it, you may refer the matter to the Insurance and Financial Services Ombudsman (IFSO). IFSO can be contacted as follows:

Telephone: 0800 888 202 or +64 4 499 7612
Email: info@ifso.nz or via their website www.ifso.nz.
Post: PO Box 10-845 Wellington New Zealand

Y our complaint must be referred to IFSO within 3 months of the final decision, unless IFSO considers special circumstances apply. If your complaint is not eligible for consideration by IFSO, you may be referred to the Financial Ombudsman Service (UK) or you can seek independent legal advice. You can also access any other external dispute resolution or other options that may be available to you.

Service of Suit*

The Underwriters accepting this Insurance agree that:

(i) if a dispute arises under this Insurance, this Insurance will be subject to New Zealand law and practice and the Underwriters will submit to the jurisdiction of any competent Court in New Zealand;

(ii) any summons notice or process to be served upon the Underwriters may be served upon:

Lloyd's General Representative in New Zealand
Level 29 Plimmer Tower
2-6 Gilmer Terrace
Wellington 6011 New Zealand

who has authority to accept service on the Underwriters' behalf;

(iii) if a suit is instituted against any of the Underwriters, all Underwriters participating in this Insurance will abide by the final decision of such Court or any competent Appellate Court.

2. COVERAGE SECTION - PERSONAL INJURY

2.1 Description of Cover

If, while on a Journey during the Period of Insurance, You suffer Accidental Bodily Injury which results within twelve (12) months in any event described in the Table of Benefits, We will pay You the Benefit Amount stated in the Table of Benefits.

2.2 Exposure and Disappearance

2.2.1 We will also pay You the Benefit stated in the Table of Benefits if, as the result of such an Accidental Bodily Injury, You are exposed to the elements and as the result of that exposure within 12 months suffers an event set out in the Table of Benefits.

2.2.2 If Your body is not found within twelve (12) months after an Accident involving the conveyance in which You were travelling, death will be presumed in the absence of any evidence to the contrary. The Death Benefit Amount set out in the Table of Benefits shall become payable subject to a signed undertaking by the Beneficiary that if the You are subsequently found alive, such Death Benefit Amount shall be refunded to us.

2.3 Definitions Applicable to Coverage Section - Personal Injury

Limb	whether in the singular or plural, means an arm at or above the wrist or a leg at or above the ankle.
Paraplegic	means total paralysis of both legs and part or whole of the lower half of the body.
Permanent	as used with respect to disablement, means disablement lasting at least twelve (12) consecutive months, and at the end of that time being beyond hope of improvement.
Quadriplegia	means total paralysis of both legs and arms.
Total Permanent Disablement	means Your inability to engage in a substantial part of Your usual occupation or employment.

2.4 Table of Benefits

	BENEFIT Accidental Bodily Injury resulting in:	THE BENEFIT AMOUNT (each Insured Person) Being a percentage of the Personal Injury Sum Insured stated in the Schedule of Benefits.
1	Death	100%
2	Permanent Total Disablement	100%
3	Permanent Paraplegia or Quadriplegia	100%
4	Permanent and incurable paralysis of all limbs	100%
5	Permanent Total loss of sight of one or both eyes	100%
6	Permanent Total loss of use of one or more limbs	100%
7	Permanent and Incurable Insanity	100%
8	Permanent Total loss of the lens of: (a) both eyes (b) one eye	 100% 50%
9	Permanent Total loss of hearing of: (a) both ears (b) one ear	 80% 20%

2.5 Conditions Applicable to Coverage Section – Personal Injury

2.5.1 A Benefit Amount will not be payable for more than one of the Benefits 1to 9 in respect of the same Accidental Bodily Injury. If the Accidental Bodily Injury causes more than one (1) of the above in the Table of Benefits, We will only pay the highest Benefit Amount.

2.5.2 After the occurrence of any of the Benefits 2 to 8(a), all cover under this Coverage Section shall cease.

2.5.3 No Benefit Amount shall be payable unless You procures and follows proper medical advice from a Physician as soon as possible after the happening of an Accidental Bodily Injury.

2.5.4 All Benefit Amounts are payable to You or to such person or persons as You nominate.

2.6 Exclusions Applicable to Coverage Section – Personal Injury

2.6.1 We will not be liable, under the Coverage Section - Personal Injury, for any claim or loss caused by or arising out of Sickness or Disease even if contracted through Accidental Bodily Injury, except that this Exclusion shall not apply to medically acquired infections or blood poisoning.

3. COVERAGE SECTION - MEDICAL AND EMERGENCY EVACUATION EXPENSES

3.1 Description of Cover

3.1.1 If during a Journey You sustain an Accidental Bodily Injury or Sickness or Disease, We will reimburse You up to the Medical and Emergency Expenses Sum Insured stated in the Schedule of Insurance for:

(a) Medical Expenses and Emergency Evacuation Expenses reasonably and necessarily incurred, on the advice of a Physician, outside the Your Country of Residence;

(b) Transport and accommodation expenses for You and up to two persons who, on the advice of a Physician, need to travel to, remain with or escort You back to Your Country of Residence, such expenses being limited to a one-way economy ticket per person for the most appropriate method of transport;

(c) Emergency dental expenses as advised by a Physician as being necessary for the relief of pain and discomfort to enable You to continue Your trip; or dental expenses incurred as a result of Accidental Bodily Injury;

(d) Medical Expenses incurred that are not provided for within the New Zealand Public Health system or Accident Compensation Commission system.

(e) Your Funeral Expenses incurred outside of Your Country of Residence or expenses incurred in relation to transportation of Your body or ashes back to Your Country of Residence up to an amount not exceeding the Sum Insured stated in the Schedule.

(f) Hospitalisation Expenses, in respect of which We will pay $100 for each completed twenty-four (24) hour period up to a maximum of $2,000, if You are hospitalised as an in patient due to Accidental Bodily Injury or Sickness or Disease during a Journey outside their Country of Residence.

(g) Medical Expenses for the treatment of depression, stress, anxiety, mental or nervous disorder, suicide or attempted suicide or self-injury. There is no cover outside New Zealand for the treatment of mental illness.

3.2 Definitions Applicable to Coverage Section - Medical and Emergency Evacuation Expenses

Emergency Medical Evacuation Expenses	means all reasonable costs necessarily incurred in repatriating You to the most suitable Hospital or to Your home address in Your Country of Residence provided that such repatriation is: a) Medically necessary; and b) Organised by the Assistance Provider.
Funeral Expenses	means reasonable and customary burial or cremation expenses.
Medical Expenses	means reasonable and customary costs for medical treatment including surgery, hospitalisation, ambulance services, chiropractic, physiotherapy, and medical supplies prescribed by a Physician.

3.3 Exclusions Applicable to Coverage Section - Medical and Emergency Evacuation Expenses

3.3.1 We will not be liable for:

(a) any Medical Expenses incurred more than twelve (12) months after the date of Accidental Bodily Injury, or in the case of Sickness or Disease, more than twelve (12) months after the date on which the Medical Expenses were first incurred;

(b) Medical Expenses incurred in respect of the rendering in New Zealand of a professional service for which an Accident Compensation Corporation benefit is payable.

(c) expenses incurred for continuing regular medical or treatment or for any associated travel, accommodation or other expenses incurred in procuring such medical or treatment in respect of any condition for which medical advice or treatment was being followed at the time that the Journey commenced;

(d) any expenses We are prohibited by law from paying;

(e) any expenses incurred:

i. where the Journey was undertaken against the advice of a Physician, or

ii. when the Insured Person is unfit to travel, or

iii. when the purpose of the Journey is for the Insured Person to seek medical attention, or

iv. as a result of a terminal condition of the Insured Person diagnosed prior to the commencement of the Journey;

v. any Pre-Existing medical condition you have not received written confirmation from the Underwriter of acceptance.

(f) any expenses incurred for routine medical, optical or dental treatment or consultation;

(g) any Medical Expenses that You can recover from any other insurance or National Insurance Programme;

(h) any claim that comes from pregnancy or childbirth unless a Physician confirms that the claim comes from complications of pregnancy or childbirth.

(i) Any Emergency Evacuation Expenses or Funeral Expenses incurred without the prior approval of the Assistance Provider.

(j) For ongoing medical costs in excess of $5,000 if you become disabled but decide not to return to your country of origin, when our medical advisors believe it is safe for you to do so. This limitation of $5,000 is the combined value of medical costs of one or multiple disablements.

(k) If you take any action contrary to the advice of a registered medical practitioner who attends you if you become disabled.

(l) For any ongoing maintenance treatment of pre-existing conditions.

(m) For new or ongoing medical treatment for a disablement that occurs during the period of insurance, if you decide not to return to your country of origin at the end of the period of insurance.

(n) For ongoing physiotherapy or manipulative therapy to treat a disablement, unless this is recommended in writing by the treating registered medical practitioner.

(o) For any medical, hospital or dental treatment provided to you in your country of origin unless this treatment is provided after you have been medically evacuated and the costs are approved by us in writing (and then for an amount not exceeding $20,000).

(p) If you elect not to follow the rehabilitation plan provided by us.

3.4 Conditions Applicable to Coverage Section – Medical and Emergency Evacuation Expenses

3.4.1 You must immediately inform the Assistance Provider of any medical emergency which may give rise to a claim;

3.4.2 To avoid prejudicing the reimbursement of expenses, You will not try to provide solutions to medical emergency problems encountered without involving the Assistance Provider.

3.4.3 In the event that Emergency Evacuation Expenses are necessarily incurred by Us when acting in good faith in respect of any person not insured under this Certificate of Insurance, You will reimburse us for all such costs incurred.

4. COVERAGE SECTION - TRAVEL CANCELLATION/ CURTAILMENT/ ADDITIONAL EXPENSES

4.1 Description of Cover

4.1.1 If Your Journey during the Period of Insurance has to be cancelled, curtailed or rearranged as a direct result of:

a) Your unexpected death;

b) You sustaining an Injury or contracting an Illness or Sickness which results in You being certified by a Physician as unfit to commence the Journey;

c) Your Relative dying unexpectedly or sustaining a Serious Injury or Serious Sickness;

d) Your residence suffering major loss or damage; or

e) Any other unforeseen circumstance outside of Your control not otherwise excluded under the Certificate of Insurance;

4.1.2 We will reimburse You up to an amount not exceeding the Sum Insured stated in the Schedule of Insurance for:

a) Advance payments, deposits and other charges which have not been, and will not be used but become forfeit or payable under contract;

b) Reasonable travel and accommodation expenses.

4.1.3 Aggregate Limit of Liability

Our total liability for all claims in respect of any one Event shall not exceed the amount stated in the Schedule of Insurance.

4.2 Exclusions Applicable to Coverage Section – Travel Cancellation/ Curtailment/ Additional Expenses

4.2.1 We will not pay any loss arising directly or indirectly out of:

(a) Cancellation, curtailment or diversion of scheduled public transport services, including by reason of strikes or other industrial action, if there had been warning before the date the particular Journey was booked that such events were likely to occur;

(b) Common carrier caused delays where the cost of the expense is recoverable from the common carrier;

(c) Any business or financial or contractual obligations of You or of any other person;

(d) Your change of plans or disinclination to commence a Journey;

(e) The inability of any tour operator or wholesaler to complete arrangements for any tour due to a deficiency in the required number of persons to commence any tour or Journey;

(f) You travelling or arranging to travel against the advice of a Physician;

(g) The insolvency or bankruptcy of a travel agent, tour operator, accommodation provider or supplier, airline or other carrier, or any other travel or tourism services provider or the insolvency of any person they deal with;

(h) Any detention because You broke the law of any Country or State;

(i) The delay of public transport if You failed to check in according to Your itinerary;

(j) The delay or cancellation of public transport on the recommendation or orders of any Port Authority, Rail Authority or the Civil Aviation Authority or any similar body;

(k) Your Redundancy;

(I) Your financial circumstances.

5. COVERAGE SECTION - PERSONAL LIABILITY

5.1 Description of Cover

5.1.1 We will Indemnify You for damages up to the limit shown in the Schedule of Insurance for which You become legally liable as a result of Your negligence during a Journey causing:

(a) accidental Bodily Injury to a third party;

(b) accidental loss of or damage to their material property.

5.1.2 We will indemnify the Insured for:

(a) all legal costs and expenses recoverable by third parties from You in respect of the claim made against the Insured or an Insured Person for which indemnity is provided in clause 5.1.1 above.

(b) any legal costs and expenses incurred with Our prior written consent.

Note: We will not be liable to indemnify You for any amount exceeding the specified Sum Insured stated in the Schedule of Insurance for the total amount payable under clauses 5.1.1 and 5.1.2 above.

5.2 Conditions Applicable to Coverage Section – Personal Liability

5.2.1 You, or Your legal personal representatives will give notice in writing to Us as soon as reasonably possible and within seven (7) days after any event, occurrence or circumstance which may give rise to a claim under this Section and will provide all details of the event, occurrence or circumstance.

a) Every claim notice, letter, writ or process or other document served on You shall be forwarded to Us immediately on receipt of the same.

b) Notice in writing shall be given to Us by You of any impending prosecution, inquest or fatal accident inquiry in connection with any such event.

c) No admission of liability, offer of settlement, promise, payment or indemnity shall be made by You or on Your behalf without Our prior written consent.

5.2.2 We shall be entitled at any time and at Our own discretion to:

(a) Take over and conduct in Your name the defence of or the settlement of any claim and to prosecute at Our own expense and for Our own benefit any claim for indemnity' against all other parties or persons

(b) Pay to You the Sum Insured stated in the Schedule of Insurance less any costs incurred by Us or any lesser sums for which any claim or claims under any section of this Certificate of Insurance can be settled. In this event We shall not be under any further liability.

5.3 Exclusions Applicable to Coverage Section – Personal Liability

5.3.1 We will not pay damages, compensation or legal expenses in respect of any liability directly or indirectly arising out of or in connection with:

(a) Loss of or damage to property or bodily injury, arising out of Your ownership, use or possession of any mechanically propelled vehicle, aircraft or waterborne craft, except for the use of motorised golf carts and golf bikes for the purposes of playing golf, horse-drawn vehicles, caravans or trailers, firearms, and/or any animal;

(b) Bodily injury to Your or to any Relative ordinarily residing with You;

(c) Any contract unless such liability would have arisen in the absence of that contract;

(d) The ownership or occupation of land or buildings;

(e) The carrying on of any trade, business or profession;

(f) Any participant to participant injury whilst participating in or practising for any sporting event or similar;

(g) Any fine or penalty;

(h) Punitive or exemplary damages

6. COVERAGE SECTION LUGGAGE, PERSONAL EFFECTS, TRAVEL DOCUMENTS, MONEY AND CREDIT CARDS

6.1 Description of Cover

6.1.1 We will pay You up to the Sum Insured stated in the Schedule of Insurance for the following losses sustained by You during a Journey:

(a) For Accidental loss of or damage to Your accompanying luggage, personal effects (other than Personal Money).

(b) For emergency replacement of essential luggage up to $1,000 if Your luggage is delayed, misdirected or temporarily misplaced by any common carrier for more than twelve (12) hours. Claims must be supported by written confirmation from the common carrier responsible and receipts for the replacement items the Insured Person needed to purchase.

(c) For the non-recoverable cost of replacing travel documents, credit cards and Insured Person's cheques or travellers cheques.

(d) For Your legal liability for payment arising out of the unauthorised use of Your Travel documents, or Personal Money following theft during a Journey by any person not being the Insured Person's Relative or travelling companion.

(e) For Accidental loss of Personal Money taken with You, limited to 25% of the Sum Insured or $500 whichever is less, unless otherwise specified in the Schedule of Insurance.

(f) For Portable Equipment up to $1,000 any one item unless otherwise specified in the Schedule of Insurance.

6.2 We may choose to replace, repair, or pay for the loss in cash

6.3 Definitions Applicable to Coverage Section – Luggage, Personal Effects, Travel Documents, Money and Credit Cards

Personal Money means Your personal cash, credit cards, bank cards, bank or currency notes, cheques, traveller's cheques, postal or money orders or other negotiable instruments.

Valuables means Cameras and other photographic equipment, GPS/ Satellite Navigation equipment, mobile telephones, portable computers, radios and music players, video equipment, telescopes and binoculars, jewellery, watches, furs, precious and semi-precious stones and articles made of or containing gold, silver or other precious metals.

6.4 Conditions Applicable to Coverage Section – Luggage, Personal Effects, Travel Documents, Money and Credit Cards

6.4.1 It is a condition of payment under this Coverage Section that all loss or damage attributable to theft or vandalism be reported to the local police or appropriate authority as soon as possible after the discovery of the loss and a written acknowledgement of the report obtained. Also, any loss of credit cards, Your cheques, travellers cheques or travel documents must be reported as soon as possible to the issuing authority and the appropriate cancellation measures taken;

(a) You shall take all reasonable precautions for the safety and supervision of any insured luggage, personal effects, travel documents and Personal Money.

6.5 Exclusions Applicable to Coverage Section – Luggage, Personal Effects, Travel Documents, Money and Credit Cards

6.5.1 We will not pay for:

(a) Damage or loss arising from electrical or mechanical breakdown of any item;

(b) Damage to or replacement of any electronic data or software;

(c) Scratching or breakage of fragile or brittle items. This Exclusion does not apply to photographic or video equipment, binoculars, spectacles or contact lenses;

(d) Damage or loss arising from wear and tear, deterioration, atmospheric or climatic conditions, mould or fungus, insects, rodents, vermin, or any process of cleaning, ironing, pressing, repairing, restoring or alteration;

(e) Luggage, personal effects, Portable Equipment, travel documents, money shipped under any freight agreement, or items sent by postal or courier services;

(f) Losses due to depreciation or devaluation of currency;

(g) Loss or damage arising from confiscation or destruction by Customs or any other authorities;

(h) Losses recoverable from any other source, e.g. airlines, tour operators, other insurance such as automatic credit card travel insurance;

Valuables:

(i) where theft or attempted theft occurs while Valuables are unattended other than when securely locked inside a building or securely locked out of sight inside a motor vehicle, or

(j) Contractual obligations in relation to a mobile phone purchase.

(k) Any single article in excess of $1,000.

(l) Loss of cash in excess of $500.

(m) More than a reasonable proportion of the total value of the set where the lost or damaged property is part of a set or a pair.

(n) Sports equipment lost or damaged whilst in use.

(o) Loss of or damage to vehicles, their accessories or spare parts.

(p) Loss of or damage to furniture, furnishings and household effects.

(q) Loss of cheques, charge, bankers' or credit cards not reported to the issuing bank or the relevant authorities as soon as the bank or authorities' office allow.

(r) Loss or theft not reported to either the police or the transport carrier within forty-eight (48) hours of discovery.